

Om Prakash v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 November 2014 · WRIT - C No. - 62272 of 2014 · **Writ dismissed; relegated to CGRF and Ombudsman under clause 7.10.**

HEADNOTE

After a permanent disconnection was allowed, a demand for electricity arrears and a recovery citation followed. The Division Bench held that the consumer's remedy lay before the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005, and dismissed the writ on the ground of alternative remedy.

FACTUAL SUMMARY

The petitioner, Om Prakash, applied to the distribution licensee for a permanent disconnection of his electricity supply. That application was allowed. Thereafter a demand for arrears of electricity dues was raised against him. He did not pay those arrears, and a recovery citation was consequently issued. He then invoked the writ jurisdiction of the Allahabad High Court, seeking to challenge the demand and the recovery proceedings initiated against him.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative remedy — CGRF and Ombudsman

HOLDING

A consumer faced with a demand for electricity arrears and a recovery citation after a permanent disconnection has a statutory remedy before the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005. The writ petition was dismissed on that ground of alternative remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ARREARS DEMAND AND THE RECOVERY CITATION

The Court did not examine the merits of the demand or the recovery citation, relegating the petitioner to the clause 7.10 forum. ¶ 1